

PLJ 2016 Lahore 855

Present: ABID AZIZ SHEIKH, J.

**FAISALABAD ELECTRIC SUPPLY COMPANY LIMITED through HR Director--
Petitioner**

versus

**ADVISORY BOARD, GOVERNMENT OF PUNJAB, LAHORE through Chairman and 2
others—Respondents**

W.P. No. 6441 of 2016, heard on 29.2.2016.

Constitution of Pakistan, 1973--

---Art. 199--Constitutional petition--Additional detection bill--Presumption and assumption--Consumption of healthy meter was shifted to defective meter--No inordinate increase of consumption on other meter after replacement of defective meter--Electric inspector found additional detection bill to be illegal and void, which finding was also upheld by advisory board--Issues raised in instant petition are question of fact which are already determined by fora-below and unless these findings are found perverse, erroneous, result of misreading and non-reading of record or order without jurisdiction, the same cannot be displaced or set aside by High Court in constitutional jurisdiction. [P. 857] A

Ch. Fiaz Ahmad Singhairah, Advocate for Petitioner.

Date of hearing: 29.2.2016.

ORDER

This Constitutional Petition has been filed against order dated 18.6.2011 passed by Electric Inspector (Respondent No. 2) whereby application of Respondent No. 3 against additional detection bill was allowed and order dated 13.8.2015 passed by Advisory Board (respondent. No. 1) whereby order of Electric Inspector was upheld.

2. Brief facts are that Respondent No. 3 was charged with additional detection bill of Rs. 7662/- for the period from September, 2009 to February, 2010. Respondent No. 3 filed complaint before Respondent No. 2 which was allowed on 18.6.2011 and the said additional detection bill was declared *null* and *void*. The petitioner being aggrieved filed appeal before the Advisory Board which was dismissed on 13.8.2015. The petitioner has assailed both these orders through this constitutional petition.

3. Learned counsel for the petitioner submits that finding of both forums below are not supported by evidence but are merely based on presumption and assumption. He submits that petitioner lawfully served the Respondent No. 3 with detection bill for the reason that he shifted consumption of his healthy meter to defective/dead meter installed at the same premises of the petitioner but this aspect of the matter was not correctly appreciated by Respondents No. 2 and 3 while passing impugned orders. Further submit that impugned order passed by Respondent No. 3 is non-speaking.

4. I have heard the arguments of learned counsel for the petitioner and perused the record at *limine* stage.

5. Admittedly, Respondent No. 3 had two electricity meters installed in its factory premises. One meter was in the name of Khurshid Alam whereas other meter was in the name of Zia Ullah. On 8.10.2009, meter in the name of Zia Ullah was checked and declared as dead stock and accordingly said meter was replaced on 24.2.2010. The Respondent No. 3 was also charged for the period 10/2009 to 02/2010 on its previous average consumption basis. However, subsequently in the billing month of June, 2010, Respondent No. 3 was charged with additional detection bill of Rs. 7662/- for the same period i.e. October, 2009 to February, 2010 on the ground that consumption of healthy meter in name of Khurshid Alam was shifted to said defective meter for the said period. The Respondent No. 3 being aggrieved filed complaint and the Electric Inspector after going through the relevant data and law correctly held that once FESCO charged Respondent No. 3 for said period on previous average basis, than for the same period, detection bill could not be issued unless the meter was removed and checked by Electric Inspector to determine whether at all healthy meter load was shifted to said defective meter. Further finding of fact has also been recorded that consumption in the healthy meter in the name of Khurshid Alam was increased after February, 2010 due to installation of air conditioner to protect machinery and installation of new electronic machinery, in summer season, therefore, merely because consumption increased against healthy meter in the name of Khurshid Alam after replacement of dead meter on 24.2.2010, it could not be sufficient ground alone to charge Respondent No. 3 with detection bill.

6. The allegations against Respondent No. 3 were also found baseless for the reason that against defective meter in the name of Zia Ullah consumption for the period August, 2009 before it became defective, remained very low i.e. 178 units. Whereas after its replacement on 24.2.2010, consumption against said meter remained on lower side and at the same time there was no inordinate increase of consumption on the other meter in the name of Khurshid Alam after replacement of defective meter. It was in these circumstances that, Electric Inspector found additional detection bill to be illegal and void, which finding was also upheld by Advisory Board. The findings recorded by fora below are finding of fact, which are not only well reasoned but also based on record and data available. Even otherwise, the issues raised in this petition are question of fact which are already determined by fora-below and unless these findings are found perverse, erroneous, result of misreading and non-reading of record or order without jurisdiction, the same cannot be displaced or set aside by this Court in this constitutional jurisdiction. No such defect has been found in the findings recorded by Electric Inspector or by Advisory Board.

7. In view of above, this petition has no substance, which is accordingly dismissed *in limine*.

(R.A.) Petition dismissed